



Tribunals Ontario

Landlord and Tenant Board

Form N8

Notice to End your Tenancy at the End of the Term

Instructions

- **Section A:** When to use this notice [p. 1](#)
- **Section B:** How to complete this notice [p. 1](#)
- **Section C:** How to give this notice to your tenant [p. 3](#)
- **Section D:** What happens after you give this notice [p. 4](#)
- **Section E:** What to do if you have any questions [p. 4](#)

May 10, 2017

SECTION

A**When to use this notice**

You can give this notice to the tenant for the following reasons:

- **Reason 1:** The tenant has been persistently late in paying the rent.
- **Reason 2:** The tenant no longer qualifies to live in public or subsidized housing.
 - You **cannot** use this notice to terminate the tenancy because a tenant no longer qualifies for rent-geared-to-income (RGI) assistance. If a tenant no longer qualifies for RGI assistance and does not pay the new lawful rent, you can use the Form N4 [Notice to End a Tenancy Early for Non-payment of Rent](#).
- **Reason 3:** The rental unit was made available to the tenant as a condition of employment and the employment has ended.
 - **Do not** use this notice to terminate the tenancy of a superintendent when their employment has ended. If you have terminated the superintendent's employment and the superintendent has not moved out of the rental unit within seven days, you can apply to the Landlord Tenant Board (LTB) to terminate the tenancy and evict the superintendent by filing a Form L2 [Application to End a Tenancy and Evict a Tenant](#). You do not need to give the superintendent a notice of termination before applying to terminate their tenancy.
- **Reason 4:** The tenancy was created in good faith as a result of an Agreement of Purchase and Sale for a proposed condominium unit, and the agreement has been terminated.
- **Reason 5:** The tenant is occupying the unit specifically to receive rehabilitative or therapeutic care and the period of tenancy agreed to has ended.
 - You can **only** give this notice for this reason if no other tenant receiving these types of services is allowed to live in the complex for more than four years.

Giving this notice is the first step in evicting a tenant for the above reasons. See [Section D](#) below for information about what happens after you give this notice to your tenant.

SECTION

B**How to complete this notice**

Read these instructions before completing the notice. You are responsible for ensuring that your notice is correct and complete. Follow the instructions carefully when you complete the notice. If you do not complete the form properly, your notice may not be valid and you may have to start over.

Under **To**, fill in the name of the tenant to whom you want to give the notice. If there is more than one tenant living in the rental unit, fill in the names of all of the tenants. Where there is a subtenant or assignee, you should name these people in the notice. However, you do not need to name other occupants, such as children or guests of the tenant.

Under **From**, fill in your name. If there is more than one landlord, fill in the names of all of the landlords.

Under **Address of the Rental Unit**, fill in the complete address of the rental unit, including the unit number (or apartment or suite number) and the postal code.

The Termination Date

Fill in the termination date. For a weekly or daily tenancy, the termination date must be at least **28 days** after the date that you give the tenant this notice. Also, the date must be on the last day of the rental period.

For any other type of tenancy, such as monthly, the termination date must be at least **60 days** after the date that you give the tenant this notice and must be the last day of the rental period or, if the tenancy is for a fixed term, the last day of the fixed term.

When you are counting the days, do not include the date you are giving the notice to the tenant. If you are **faxing** the notice, it is deemed to be given on the date imprinted on the fax. If you are sending the notice **by courier**, add one business day for delivery. If you are sending the notice **by mail**, add five days for delivery.

Example:

The tenancy is month-to-month and rent is paid on the first of each month. If the landlord decides to give this notice on August 1st, and the landlord is handing the notice to the tenant, the earliest date the landlord could fill in as the termination date is September 30th (60 days from August 1st and falling on the last day of a rental period). If the landlord is mailing the notice to the tenant on August 1st, the earliest date the landlord could fill in as the termination date is October 31st (60 days from August 1st + 5 days for mailing and falling on the last day of the rental period).

My Reason(s) for Ending your Tenancy:

Shade the box completely next to each reason for giving the tenant this notice.

Details About the Reasons for this Notice:

Include dates, times and the details of the events that led to you giving the tenant the notice. For example,

If you selected...	You should include...
Reason 1: The tenant has persistently paid rent late.	When rent is due, the dates the tenant paid rent, the amount the tenant failed to pay and what periods those payments were for.

If you selected...	You should include...
Reason 2: The tenant no longer qualifies for to live in public or subsidized housing.	The date and reason the tenant no longer qualifies for public or subsidized housing.
Reason 3: The rental unit was made available to the tenant as a condition of employment and the employment has ended.	The date the tenant's employment ended and the nature of the tenant's employment and any details about the employment that may be important. Be specific.
Reason 4: The tenancy was created in good faith as a result of an Agreement of Purchase and Sale for a proposed condominium unit, and the agreement has been terminated.	The date the agreement of purchase and sale was entered into, the date it was terminated and the reason it was terminated.
Reason 5: The tenant lives in a care home for the sole purpose of receiving rehabilitative or therapeutic care and the period of tenancy agreed to has ended.	List the services provided to the tenant and explain what the agreement set out and when the period of tenancy would end.

Signature:

If you are the landlord, shade the circle marked "Landlord". If you are the landlord's representative, shade the circle marked "Representative". Fill in your name and phone number. Then, sign the notice and fill in the date you sign the notice.

Representative's Information (if applicable):

If you are the landlord's representative, fill in your name and phone number. Then, fill in your name, company name (if applicable), and mailing address. Include your phone number and fax number, if you have one.

SECTION

C

How to give this notice to your tenant

There are many ways that you can give this notice to your tenant. You can:

- hand it directly to the tenant or to an adult in the rental unit,
- leave it in the tenant's mailbox or where mail is ordinarily delivered,
- place it under the door of the rental unit or through a mail slot in the door,
- send it by fax to a fax machine where the tenant carries on business or to a fax machine in their home,
- send it by courier, or
- send it by mail.

You cannot give the tenant this notice by posting it on the door of the tenant's rental unit.

SECTION**D****What happens after you give this notice**

It is important that you keep a copy of the notice you give your tenant.

You can apply to the LTB for an order to terminate the tenancy immediately after giving the notice to the tenant.

To make this application, you need an [Application to End a Tenancy and Evict a Tenant](#) (Form L2). You will also need to file a copy of the [Notice to End your Tenancy at the End of the Term](#) (Form N8) you gave the tenant, and a [Certificate of Service](#) to tell the LTB when and how you gave the notice to the tenant.

You must apply no later than 30 days after the termination date you put in this notice.

The L2 and the Certificate of Service forms are available at your local LTB office, or from the LTB website at tribunalsontario.ca/ltb.

SECTION**E****What to do if you have any questions**

You can visit the LTB website at: tribunalsontario.ca/ltb

You can call the LTB at 416-645-8080 from within the Toronto calling area, or toll-free at 1-888-332-3234 from outside Toronto, and speak to one of our Customer Service Officers.

Customer Service Officers are available Monday to Friday, except holidays, from 8:30 a.m. to 5:00 p.m. They can provide you with **information** about the *Residential Tenancies Act* and the LTB's processes; they cannot provide you with legal advice. You can also access our automated information menu at the same numbers listed above 24 hours a day, 7 days a week.